

Web Development Service Agreement

JOHN CHEGE / WEB DEVELOPER / SERVICE AGREEMENT

This Service Agreement ("Agreement") is entered into between the Service Provider and the Client named below, and sets out the terms under which web development services will be provided.

Service Provider	Client
John Chege Web Developer Kenya johnchegegathu99@gmail.com 0111 671 646	Name: _____ Business (if any): _____ Email: _____ Phone: _____

Project name: _____

Agreement date: _____

Estimated start date: _____

Estimated delivery date: _____

Total project fee: _____

1. Scope of Work

The Service Provider will design and develop the website/web application described below ("the Project"), as agreed with the Client before work begins.

Project description / deliverables:

Only the work described above, and any items later added in writing under Section 2, is included in the Total Project Fee.

2. Out-of-Scope Work and Change Requests

- Any request that falls outside the agreed scope of work in Section 1, including but not limited to new pages, new features, additional design revisions beyond what is agreed, third-party integrations not originally scoped, or content not provided on time, is considered out-of-scope work.
- Out-of-scope work will not be started until the Client has approved it in writing (including by email or WhatsApp message) and agreed to the additional cost and any resulting change to the delivery date.
- Out-of-scope work is billed separately from the Total Project Fee, either at an agreed fixed price per item or at an hourly rate agreed between both parties.

3. Payment Terms

- A deposit of **50% of the Total Project Fee** is due before work on the Project begins. This deposit secures the Client's place in the Service Provider's schedule and covers initial work.
- The remaining balance is due before final files, credentials, or a live/deployed version of the Project are handed over to the Client.
- For larger projects, payment may instead be split into milestone-based instalments if agreed in writing by both parties before work begins.
- Payment is made by the method agreed between both parties (for example bank transfer or mobile money). Bank/mobile money details will be shared separately and are not part of this Agreement.
- The deposit is non-refundable once work has started, except where the Service Provider is unable to begin or continue the Project through no fault of the Client.

4. Revisions

The Total Project Fee includes up to **two rounds** of revisions on the agreed deliverables, unless otherwise stated in Section 1. Revision requests should be grouped together and sent in writing. Additional revision rounds beyond what is included are treated as out-of-scope work under Section 2.

5. Timeline and Client Responsibilities

- The estimated delivery date in this Agreement depends on the Client providing requested content, feedback, and approvals within a reasonable time, generally within 5 working days of a request unless otherwise agreed.
- Delays caused by the Client (late content, late feedback, late payment) may extend the delivery date by a corresponding amount of time, and do not count as a missed deadline by the Service Provider.

6. Ownership and Intellectual Property

Ownership of the final deliverables (design files, code written specifically for the Project, and content created by the Service Provider for the Project) transfers to the Client upon receipt of full and final payment. Until full payment is received, all work remains the property of the Service Provider. Third-party tools, libraries, frameworks, stock assets, or licensed software used in the Project remain subject to their own licence terms and are not owned by either party.

7. Cancellation

- Either party may cancel this Agreement in writing before work begins, in which case any deposit paid will be refunded in full.

- If the Client cancels after work has started, the deposit is retained by the Service Provider to cover work already completed. Any additional work completed beyond the deposit amount will be invoiced based on the proportion of the Project completed.
- If the Service Provider is unable to complete the Project, any amount paid for work not yet delivered will be refunded to the Client.

8. Confidentiality

Both parties agree to keep confidential any non-public business information shared during the Project, and not to disclose it to third parties without written consent, except where required by law.

9. Portfolio Use

Unless the Client requests otherwise in writing, the Service Provider may reference the completed Project (name, screenshots, and a general description of the work) in their personal portfolio and for marketing purposes. Confidential business information covered under Section 8 will not be shared.

10. Limitation of Liability

The Service Provider will carry out the Project with reasonable skill and care. The Service Provider is not liable for indirect or consequential losses, or for issues arising from content, third-party services, or hosting environments outside their control. The Service Provider's total liability under this Agreement is limited to the Total Project Fee paid by the Client.

11. Governing Law

This Agreement is governed by the laws of Kenya. Any dispute arising from this Agreement will first be addressed through good-faith discussion between both parties before any other action is taken.

Agreement and Signatures

By signing below, both parties agree to the terms set out in this Web Development Service Agreement.

Service Provider

Client

Signature: _____

Signature: _____

Name: John Chege

Name: _____

Date: _____

Date: _____

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